

25CMCV00315 25CMCV00315

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-02

Motion: DEFENDANT ORANGE HOLDINGS LLC'S: (1) DEMURRER TO FIRST AMENDED COMPLAINT; (2) MOTION TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT; AND (3) MOTION FOR ENTRY OF JUDGMENT OF DISMISSAL
DATE: July 2, 2026 TIME: 8:30 A.M.

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Case Number: 25CMCV00315 Hearing Date: July 2, 2026 Dept: E

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR
THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

DITAGI GREENE,

Plaintiff,

vs.

ORANGE HOLDINGS, LLC,

DOES 1 through
50

Defendants.

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CASE NO: 25CMCV00315

[TENTATIVE] ORDER RE: DEFENDANT ORANGE HOLDINGS LLC'S: (1) DEMURRER
TO FIRST AMENDED COMPLAINT; (2) MOTION TO STRIKE PLAINTIFF'S FIRST AMENDED
COMPLAINT; AND (3) MOTION FOR ENTRY OF JUDGMENT OF DISMISSAL

DATE: July 2, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant Orange
Holdings LLC

Responding Party: None

Notice: Ok

Tentative Ruling: Defendant's Demurrer is SUSTAINED
WITHOUT LEAVE TO AMEND.

Defendants' Motion to
Strike and Motion for Entry of a Judgment of Dismissal are both DENIED AS MOOT.

I.
BACKGROUND

This is a habitability action. As alleged in the operative First Amended Complaint (the "FAC"), Plaintiff Ditagi Greene entered into a written rental agreement for the real property located at 218 West Carson Street Trailer # 7, Carson, CA 960745 (the "Premises"). Defendant Orange Holdings LLC ("Orange Holdings") is alleged to be the landlord and/or property manager for the Premises and is further alleged to be a business owned, operated and controlled by Peter Starr ("Starr"), the owner and lessor of the Premises. Plaintiff alleges that the Premises suffered from mold, rodent infestation, defective window conditions, a missing or broken carbon monoxide detector, and deteriorated paint. Plaintiff alleges that the landlord/manager was made aware of the defective conditions but failed to remedy the conditions.

On February 26, 2025, Plaintiff filed his initial Complaint against Orange Holdings and Does 1 through 50, alleging: (1) Failure to Provide Habitable Dwelling; (2) Breach of Covenant and Right to Quiet Enjoyment and Possession of the Property; (3) Nuisance; (4) Negligence; and (5) Violation of Civil Code Section 1942.4.

On March 13, 2026, after the Court granted Orange Holdings' Motion for Judgment on the Pleadings with leave to amend, Plaintiff filed the operative FAC. The FAC alleges the same causes of action as Plaintiff's initial Complaint and purports to add Starr as a named Defendant.

1.
Motion for Entry of Judgment
of Dismissal

On April 15, 2026, Orange Holdings filed the instant Motion for Entry of Judgment of Dismissal.

On April 16, 2026, Plaintiff filed an Opposition.

On May 5, 2026, Orange Holdings filed a Reply.

2.

Demurrer and Motion to Strike

On

May 11, 2026, Defendant filed the instant Demurrer and Motion to Strike Plaintiff's FAC.

On June 24, 2026, Plaintiff filed a document titled "Declaration of Kevin Anderson in Support of Plaintiff's Response to Orange Holdings' Reply Brief."

On June 25, 2026, Defendant filed a Reply Brief in Support of Unopposed Demurrer to First Amended Complaint and Unopposed Motion to Strike.

As

of July 1, 2026, no substantive oppositions to Orange Holdings' Demurrer or Motion to Strike have been filed.[1] Pursuant to Code Civ. Proc. § 1005(b), all papers opposing a noticed motion must be filed with the court and served on all other parties "at least nine court days ... before the hearing." (Code Civ. Proc. § 1005(b).) Accordingly, any opposition papers now filed are untimely, and the Court exercises its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II.

ANALYSIS

A.

Legal Standard

1.

Demurrer

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc. § 430.10, subd. (e).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at p. 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

2.

Motion to
Strike

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. § 435(b)(1).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. §§ 436(a), (b); Stafford v. Schultz (1954))

42 Cal.2d 767, 782.)²²

The grounds for moving to strike must appear on the face of the pleadings or by way of judicial notice. (Code Civ. Proc. § 437.) Accordingly, the Court does not consider any extrinsic evidence, including that contained in affidavits, declarations, or deposition transcripts concurrently filed with the moving or opposing papers. (See *Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 21 (holding that the court cannot consider extrinsic evidence to show that the complaint is false or a sham).)²³

In ruling on a motion to strike, the allegations in the complaint are considered in context and presumed to be true: “[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court (Pedus Services, Inc.)* (1998) 67 Cal.App.4th 1253, 1255.)

3.

Motion for
Entry of Judgment of Dismissal

Where a motion for judgment on the pleadings is granted and a party files an amended pleading either after the time to file an amended pleading has expired or not in conformity with the Court’s ruling the Court may, upon a party’s motion, strike the amended pleading and enter judgment in the opposing party’s favor. (Code Civ. Proc. § 438(i)(1)(A).)

B.

Meet and Confer

Before filing a demurrer, the demurring party is required to meet and confer “in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41(a).)

Counsel for Orange Holdings, Marc A.

Lowe ("Lowe"), attests that on May 5, 2026 he met and conferred with Plaintiff's counsel, Kevin Anderson ("Anderson"), by telephone. (Lowe Decl., ¶2.) However, the parties could not resolve their issues. (Id.)

The Court finds that Orange Holdings has satisfied the meet and confer requirement.

C.

Request for Judicial Notice ("RJN")

Orange Holdings requests the Court take judicial notice of the following:

(1) The small claims complaint filed in Los Angeles Superior Court ("LASC") Case No. 24IWSC01215 (the "First SC")(RJN, Exh. A);[2]

(2) March 21, 2025 Minute Order filed in LASC Case No. 24IWSC01215 (RJN, Exh. B);

(3) The small claims complaint LASC Case No. 25IWSC00044 (the "Second SC")(RJN, Exh. C); and

(4) The entry of judgment in LASC Case No. 25IWSC00044 (RJN, Exh. C).

The Court may take judicial notice of the records of any court of this state. (Evid. Code §452(d).) A court may also take judicial notice of an official document and of the facts that can be deduced or clearly derived from the legal effect of a document, such as the names and dates contained in the document and its legal consequences. This is not the same as taking judicial notice of the truth of specified factual representations in a document. (Julian Volunteer Fire Co. Ass'n v. Julian-Cuyamaca Fire Protection Dist. (2021) 62 Cal.App.5th 583, 600.) Where judicial notice is requested of a legally operative document, a judge may take notice not only of the fact of the document and its recording, but also of facts that clearly derive from the document's legal effect. (Scott v. JP Morgan Chase Bank, N.A. (2013) 214 Cal.App.4th 743, 754-55; see also Fontenot v. Wells Fargo Bank (2011) 198 Cal.App.4th 256, 265 (overruled on other grounds in Yvanova v. New Century Mortgage Corp. (2016) 62 Cal.4th 919)

("... a court may take judicial notice of the fact of a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity.".)

As each of the documents presented

in Orange Holdings is a document of which the Court is permitted to take

judicial notice, the Court GRANTS Orange Holdings Request for Judicial Notice. In accordance with the authority cited above,

the Court takes judicial notice of the documents and the legal effects thereof, but not of the factual matters asserted therein.

D.

Discussion

1.

Demurrer

Orange Holdings demurs to

Plaintiff's FAC on the grounds that each cause of action is barred by the doctrine of claim preclusion, contending that the instant action is precluded because Plaintiff previously pursued the same causes of action in small claims court. Orange Holdings argues that there were two previous small claims actions between the parties (the First SC and the Second SC) and, although Greene dismissed the First SC, the instant action is still precluded because Greene could have presented his mold related claims in the Second SC.

Aside from presenting a declaration

stating that the FAC was filed (see fn. 1), Greene does not oppose.

At the outset the Court notes, as Orange Holdings correctly cites

in its moving papers, "[i]t is well established that the claim preclusion

aspect of the doctrine of res judicata applies to small claims judgments."

(Pitzen v. Superior Court (2004) 120 Cal.App.4th 1374, 1381 (citing Allstate Ins. Co. v. Mel Raption, Inc. (2000) 77 Cal.App.4th 901, 905); see also Sanderson v. Nieman (1941) 17 Cal.2d 563, 573 ("[A] judgment of any court whether of high or low jurisdiction, and of record or not, constitutes a complete bar against a second suit on the same cause of action") (emphasis in original).)

Accordingly, the Court finds that the jurisdictional limits of small claims versus unlimited civil is of no import in its res judicata analysis and proceeds with its analysis.

i.

Claim Preclusion

“Res

judicata, or claim preclusion, prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them. Claim preclusion arises if a second suit involves: (1) the same cause of action (2) between the same parties (3) after a final judgment on the merits in the first suit.” (Egelston v. State Personnel Bd. (2025) 112 Cal.App.5th 1050, 1055 (internal citations and quotations omitted)(citing DKN Holdings LLC v. Faerber (2015) 61 Cal.4th 813, 824-825).) Res judicata also applies to claims that could have been raised in the prior action. (See Bucur v. Ahmad (2016) 244 Cal.App.4th 175, 185.) A prior final judgment on the merits not only settles issues that were not actually litigated but also every issue that might have been raised and litigated in the first action because California's res judicata doctrine is based upon the “primary right” theory and precludes litigation of the same cause of action on a different legal theory or for different relief. (See Lincoln Property Co., N.C., Inc. v. The Travelers Indemnity Co. (2006) 137 Cal.App.4th 905, 912-13 (“Lincoln”).)

As

explained by the California Supreme Court in Crowley v. Katleman (1994) 8 Cal.4th 666 (“Crowley”):

The primary right theory is a theory of code pleading that has long been followed in California. It provides that a “cause of action” is comprised of a “primary right” of the plaintiff, a corresponding “primary duty” of the defendant, and a wrongful act by the defendant constituting a breach of that duty. The most salient characteristic of a primary right is that it is indivisible: the violation of a single primary right gives rise to but a single cause of action. A pleading that states the violation of one primary right in two causes of action contravenes the rule against “splitting” a cause of action.

As far as its content is

concerned, the primary right is simply the plaintiff's right to be free from the particular injury suffered. It must therefore be distinguished from the legal theory on which liability for that injury is premised: [e]ven where there are multiple legal theories upon which recovery might be predicated, one injury gives rise to only one claim for relief. The primary right must also be distinguished from the remedy sought: [t]he violation of one primary right constitutes a single cause of action, though it may entitle the injured party to many forms of relief, and the relief is not to be confounded with the cause of action, one not being determinative of the other.

The primary right theory has a fairly narrow field of application. It is invoked most often when a plaintiff attempts to divide a primary right and enforce it in two suits. The theory prevents this result by either of two means: (1) if the first suit is still pending when the second is filed, the defendant in the second suit may plead that fact in abatement; or (2) if the first suit has terminated in a judgment on the merits adverse to the plaintiff, the defendant in the second suit may set up that judgment as a bar under the principles of res judicata. The latter application of the primary right theory appears to be most common: numerous cases hold that when there is only one primary right an adverse judgment in the first suit is a bar even though the second suit is based on a different theory or seeks a different remedy.

(Crowley, supra, 8 Cal.4th at pp. 681-682
(Cleaned up, internal citations and quotations omitted).)

In accordance with the above, in order to assess whether res judicata bars Plaintiff's currently asserted causes of action the Court assesses Plaintiff's prior small claims actions, the primary right(s) asserted, and the resulting judgment. [3], [4]

a.

The First SC – LASC Case No.: 24IWSC01215
Ditagi Greene v. Orange Holdings, LLC, et al.

On

August 8, 2024 Plaintiff Ditagi Greene filed the First SC against Defendants Orange Holdings, LLC dba 210 Leasing and Orange Holdings Two, LLC, alleging "Defendant rented me a trailer, which was leaking, causing mold and I became ill. They also claim damage repairs

which they do not have receipts for.” (RJN, Exh. A, pp. 1-2.) Greene sought a total of \$12,500 in damages for “[t]he amount of unproven damages Defendant is claiming, and the effects and expense of the mold on my physical body.” (Id., pp. 2-3.) On March 21, 2025, the First SC was called for trial and, at Plaintiff’s oral request, the Court ordered the matter dismissed without prejudice. (RJN, Exh. B.)

The

Court finds no claim preclusive effect as to the First SC. While the parties are the same between the First SC and the instant matter and the gist of the allegations are the same, the First SC was dismissed without prejudice at Plaintiff’s request. (See RJN, Exh. B.) Accordingly, there was no final decision on the merits and, as the First SC was dismissed without prejudice, there was nothing barring Plaintiff from filing the instant matter.

b.

The Second SC – LASC Case No.: 25IWSC00044
Ditagi Greene v. Orange Holdings, LLC, et al.

On January 10, 2025, Plaintiff Ditagi Greene filed the Second SC against Defendants Orange Holdings, LLC dba 210 Leasing and Orange Holdings 210 Leasing LLC alleging “deposit harassment retaliation discrimination wrongful eviction emotional distress legal clauses in lease.” (RJN, Exh. C, pp. 1-2.)[5] Greene sought \$12,500 in damages. (Id., p. 2.) On February 20, 2025 Defendant Orange Holdings, LLC filed a Crossclaim against Plaintiff Ditagi Greene, seeking \$4,525.00 “[f]or the past due rent & property damages.” (See Defendant’s Claim and ORDER to Go to Small Claims Court, filed 2/20/25, LASC Case No.: 25IWSC00044.)

On March 21, 2025, on the claim filed by Greene, the Court in the Second SC issued judgment in favor of Defendants and against Greene for a total of \$0.00. (RJN, Exh. D, p. 2.) On the same date, on the Crossclaim filed by Defendant Orange Holdings, LLC dba 210 Leasing against Greene, the Court entered judgment in favor of Orange Holdings, LLC in the amount of \$0.00. (Id.)

Applying the above to Orange Holdings’ contention that the instant matter precluded, the Court finds that the Second SC and the instant matter are between the same parties – Greene and Orange Holdings. And the Court further finds that the Second SC resulted in a determination on the merits – the aforementioned March 21, 2025 judgment(s) in Orange Holdings’ favor.

What is left is a determination of whether the Second SC and the instant matter involve the same causes of action or, put differently, whether the Second SC and the instant matter involve litigation of the same primary right.

1.

The Primary Right Asserted in the Second SC is the same as is Asserted in the Instant Matter

In the Second SC, Greene pleads “deposit harassment retaliation discrimination wrongful eviction emotional distress legal clauses in lease.” (RJN, Exh. C, pp. 1-2 (emphasis added).) In its Crossclaim, Orange Holdings seeks damages “[f]or the past due rent & property damages.” (See Defendant’s Claim and ORDER to Go to Small Claims Court, filed 2/20/25, LASC Case No.: 25IWSC00044).) The issues identified in the SC via Plaintiff’s

Claim are Greene’s lease, his claimed “wrongful eviction,” and the lease’s legal requirements (among other things).

And one of the issues identified in the SC via Orange Holdings’ Crossclaim is damage to the leased property.

Given those identified issues, the Court finds that the primary right litigated in the Second SC was Greene’s asserted right to live in the premises leased from Orange Holdings in accordance with California law and the terms of the lease agreement between the parties. The Court further finds that, given the allegation of property damage made in Orange Holdings’ Crossclaim, at least one of the issues litigated in the Second SC in relation to Greene’s asserted primary right was damage to the leased premises.

Without regard to the legal theory pursuant to which Greene seeks recovery in the instant matter, the allegations here involve the same primary right as asserted in the Second SC – Greene asserts that he had a right to occupy the premises leased from Orange Holdings (see FAC ¶ 9), Orange Holdings had legal obligations pursuant to California law and the lease between the parties (see *Id.*, ¶¶ 11-13 (setting forth Orange Holdings’ legal obligations as landlords pursuant to Civil Code § 1941.1 and Health and Safety Code § 17920.3), ¶ 28 (“the rental agreement and tenancy between Plaintiffs and Defendants included an implied covenant of quiet enjoyment”) and Orange Holdings’ alleged violations of its duties resulting in damage to Plaintiff (see, generally, FAC). And one of the issues Greene seeks to litigate in association with his asserted primary right here is damage to the leased premises (again, as was the case in the Second SC). The main difference between the Second SC and the instant matter is that here Greene seeks recovery based upon differing theories of liability; habitability, nuisance, negligence and

violations of various statutory provisions are asserted here versus the discrimination, harassment, retaliation, wrongful eviction and "legal clauses in lease which were asserted in the Second SC.

But that recovery is sought on a different theory of liability here is inapposite because "numerous cases hold that when there is only one primary right an adverse judgment in the first suit is a bar even though the second suit is based on a different theory or seeks a different remedy." (Crowley, supra, 8 Cal.4th at pp. 681-682.)

In accordance with the above, the Court finds that Plaintiff's causes of action here are barred by res judicata.

Greene asserts the same causes of action, the actions are between the same parties, and – as is noted above – the Second SC resulted in a final judgment on the merits. Accordingly, Orange Holdings' Demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

2.

Motion to Strike and Motion For Entry of a Judgment of Dismissal

Orange Holdings moves to strike the entire FAC as untimely and for failure to comply with Rule 2.112 or, in the alternative, to Strike references to newly named party Peter Starr as leave was not granted to add a new defendant. And, via its Motion for Entry of a Judgment of Dismissal, Orange Holdings moves pursuant to Code of Civil Procedure § 438 to dismiss Plaintiff's First Amended Complaint for failure to comply with the Court's March 11, 2026 Order granting its Motion for Judgment on the Pleadings.

The Court has sustained Orange Holdings' demurrer without leave to amend. Thus, both the pending Motion to Strike and the pending Motion for Entry of a Judgment of Dismissal have been rendered moot.

Accordingly, both the Motion to Strike and the Motion for Entry of a Judgment of Dismissal are DENIED AS MOOT.

III.

CONCLUSION

The Court SUSTAINS Orange Holdings' Demurrer to

Plaintiff's First Amended Complaint WITHOUT LEAVE TO AMEND.

Orange Holdings' Motion to Strike

and Motion for Entry of a Judgment of Dismissal are both DENIED AS MOOT.

[1]

Plaintiff's June 24 filing is a declaration of counsel alerting the Court that Plaintiff filed the FAC on March 13, 2026 and requesting that the Court "consider the First Amended Complaint presently on file and deny Defendant's request for relief to the extent it is based on the mistaken premise that no amended pleading has been filed." (Anderson Decl., filed 6/24/26, ¶¶ 1-7.) Plaintiff filed no other substantive opposition. The Court of course acknowledges and considers Plaintiff's filed FAC in its analysis herein.

[2]

Each exhibit of which Orange Holdings request judicial notice be taken is attached to the accompanying Demurrer.

[3]

While judicial notice is not taken of the truth of the allegations made in the pleadings in the First SC and the Second SC, each is properly reviewed to determine the issues set forth and ultimately decided by the Court in those actions. (See *Guarantee Forklift, Inc. v. Capacity of Texas Inc.* (2017) 11 Cal.App.5th 1066, 1075 ("To determine whether to preclude relitigation on collateral estoppel grounds, judicial notice may be taken of a prior judgment and other court records. Whether a factual finding is true is a different question than whether the truth of that factual finding may or may not be subsequently litigated a second time. (internal citations and quotations omitted)(quoting *Hawkins v. SunTrust Bank* (2016) 246 Cal.App.4th 1387, 1393).)

[4] The

Court notes that both the First SC and the Second SC were ordered related to the instant matter. (See Minute Order (Court Order re: Notice of Related Case), 5/7/26 (Ordering the Second SC related to the instant matter); see also Minute Order (Court Order re: Notice of Related Case), 5/12/26 (Ordering the First SC related to the instant matter).) Accordingly, in addition to the documents the Court has already taken judicial notice of at Defendant's request, the Court of its own accord takes judicial notice of the filings in both the First SC and the Second SC.

[5]

The transcribed portion of the Second SC may be slightly inaccurate. The handwriting on the form is unclear and what appeared to be extraneous letter(s) were left out.